that if the government could detain prisoners indefinitely without ‘due process’ then it would not hold any trials at all either, the litigation in *Rasul* turned into a challenge to the lawfulness of indefinite detention without legal process. The US Supreme Court gave its decision in June 2004 and declared that the Guantánamo prisoners could seek a writ of habeas corpus. They could do so to challenge both the factual and legal basis of their detention in the federal district court. However, Congress then immediately responded by amending the habeas corpus statute and removed statutory jurisdiction. When this too was challenged, the US Supreme Court in 2018 held that the prisoners at the base had a constitutional right to habeas corpus. In what was known as the *Boumediene Case*, the supreme court left no doubt that a statute could not arbitrarily remove such a basic right in the constitution. The intent of the supreme court, however, was to only declare the general principle that applied. It was still up to the lower courts to give it effect. When the matter returned before the District of Columbia Court of Appeals, new procedural rules were developed in that court, together with the creation of a further substantive standard, which impeded the right of an imprisoned detainee at Guantánamo to secure habeas corpus. In short, there was a right to apply for habeas corpus by filing a writ. There was no right to acquire habeas corpus. The court had successfully stymied the individual’s right to habeas corpus against the state by crafting further rules which disfavoured the individual. In this way, the right to habeas corpus was rendered totally illusory and artificial behind a shabby curtain of legal artifice. It was not a real and effective enunciation of legal principle. The manner and method of the trial of ‘political prisoners’ in this way is in fact traceable to the manner and method of such trials during the time of empire in Britain, and in particular the Bhagat Singh case. The aim was to create the chimera of a process according to law. The reality was a mirage. The closer the lawyers got to it the further it moved away from them. Today, the Julian Assange trial in the United Kingdom smacks of the same.[5]